JUSTICE BARRETT delivered the opinion of the Court.

The Federal Aviation Administration Authorization Act preempts state laws related to the prices, routes, and services of the trucking industry. But there is an important exception: States retain authority to regulate safety "with respect to motor vehicles." This case presents the question whether a claim that one company negligently hired another to transport goods falls within that exception. It does.

I

A

Sellers often use motor carriers to transport products to their destination. But finding a carrier can be time consuming, so many sellers rely on brokers to do it for them. Think of it this way: Brokers are the transportation industry's

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et al. by *Hyland Hunt*, *Ruthanne Deutsch*, and *Jeffrey Burns*; and for Robert Cox by *Adina H. Rosenbaum*, *Allison M. Zieve*, and *Christopher T. Saucedo*.

Briefs of *amici curiae* urging affirmance were filed for the State of Nebraska et al. by *Michael T. Hilgers*, Attorney General of Nebraska, *Cody S. Barnett*, Solicitor General, and *Frederick R. Yarger*, *Kevin D. Homiak*, and by *Christopher M. Carr*, Attorney General of Georgia; for Amazon.com, Inc., by *Roman Martinez* and *Margaret A. Upshaw*; for the Chamber of Commerce of the United States of America et al. by *Noel J. Francisco*, *Kelly Holt Rodriguez*, *Stephanie A. Maloney*, *Elizabeth Milito*, and *Karen R. Harned*; for Interested Freight Brokers by *Robert D. Moseley, Jr.*, *C. Fredric Marcinak III*, and *Martin E. Cain*; for the National Association of Manufacturers by *James H. Burnley IV*, *Ronald M. Jacobs*, *Megan Barbero*, and *Erica Klenicki*; for OurBus, Inc., by *Patricia L. Gatling*; for Tokio Marine Houston Casualty Co. by *Conte Cicala* and *Jovana Crncevic*; for the Transportation Intermediaries Association, Inc., by *Marc S. Blubaugh*; for the Washington Legal Foundation by *Cory L. Andrews* and *Zac Morgan*; and for Keith Hylton et al. by *Trisha Anderson* and *Martin Totaro*.

Briefs of *amici curiae* were filed for Airlines for America by *Shay Dvoretzky*, *Parker Rider-Longmaid*, and *Raza Rasheed*; and for Gergana Franco by *Jonathan L. Hilton* and *Geoffrey C. Parker*.

matchmakers, connecting sellers of goods to the carriers who move them.

Today, roughly 28,000 brokers arrange transportation for about a third of all freight shipped in the United States by more than 780,000 carriers. Dept. of Transp., Federal Motor Carrier Safety Admin., 2024 Pocket Guide to Large Truck and Bus Statistics 9–10; Brief for Truck Safety Coalition et al. as *Amici Curiae* 7–8. Brokers net the difference between the price that a company will pay to move goods and the cost of hiring a carrier. *Id.*, at 7.

The Federal Government began regulating the trucking industry in 1935. P. Teske, S. Best, & M. Mintrom, Deregulating Freight Transportation: Delivering the Goods 60 (1995) (Teske). The Interstate Commerce Commission (ICC) initially regulated rates and services of motor carriers "'in the public interest.'" 49 Stat. 543. But the ICC's interventions "inhibit[ed] market entry [and] carrier growth," creating "some operating inefficiencies and some anticompetitive pricing." 94 Stat. 793. Its regulation also stifled brokers' development. J. Kinsler, Motor Freight Brokers: A Tale of Federal Regulatory Pandemonium, 14 Nw. J. Int'l L. & Bus. 289, 290 (1994). So Congress enacted the Motor Carrier Act of 1980 to deregulate aspects of the industry. *Ibid.* The Motor Carrier Act "ease[d] entry requirements, reduce[d] collective rate making, and encourage[d] greater flexibility in pricing." Teske 69.

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Even so, state regulation of the industry continued to inhibit competition. 108 Stat. 1605 (state regulation "impeded the free flow of trade, traffic, and transportation of interstate commerce" and "placed an unreasonable cost" on consumers). In 1994, Congress addressed that problem by enacting the Federal Aviation Administration Authorization Act (FAAAA), which expressly preempts certain state regulations involving motor carriers. *Id.*, at 1605–1607. A year later, Congress amended the Act to preempt state regulations involving other players in the transportation industry,

including brokers. 109 Stat. 899. Its preemption provision now prohibits States from "enact[ing] or enforc[ing] a law, regulation, or other provision having the force and effect of law related to a price, route, or service" of any motor carrier or broker "with respect to the transportation of property." 49 U. S. C. § 14501(c)(1).

While the FAAAA's preemption provision is broad, it contains exceptions. §§ 14501(c)(2)–(4). One—which we will call the safety exception—provides that the preemption provision "shall not restrict the safety regulatory authority of a State with respect to motor vehicles." § 14501(c)(2)(A). Other exceptions leave room for States "to impose highway route controls or limitations based on the size or weight of the motor vehicle or the hazardous nature of the cargo" and to impose minimum insurance requirements on carriers. *Ibid.* Congress designed the safety exception "to ensure that its preemption of States' economic authority over motor carriers of property [did] 'not restrict' the preexisting and traditional state police power over safety." *Columbus* v. *Ours Garage & Wrecker Service, Inc.*, 536 U. S. 424, 439 (2002) (quoting § 14501(c)(2)(A)).

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B

While driving a load of plastic pots through Illinois in a Mack Truck, respondent Yosniel Varela-Mojena veered off course. He struck petitioner Shawn Montgomery's tractor-trailer, which was stopped on the side of the road. Montgomery's leg had to be amputated, and he sustained other severe and permanent injuries from the collision. Varela-Mojena was driving for respondent Caribe Transport II, LLC—a motor carrier. Respondent C.H. Robinson Worldwide, Inc.—a broker—had coordinated the shipment.

Montgomery sued Varela-Mojena, Caribe Transport, C.H. Robinson, and corporate entities associated with them. Among other claims, he alleged that C.H. Robinson was liable for his injuries because it negligently hired Varela-

Mojena and Caribe Transport. Montgomery claimed that Caribe Transport had a "'conditional'" safety rating from the Federal Motor Carrier Safety Administration when C.H. Robinson hired it. App. 21. That agency had allegedly found Caribe Transport to be deficient "with respect to qualification of drivers," "hours of service of drivers," "inspection, repair and maintenance," "recordable crash rate," and more. *Id.*, at 20–21 (internal quotation marks omitted). Based on that safety rating, Montgomery claimed that C.H. Robinson knew (or should have known) that choosing Caribe Transport to transport goods was reasonably likely to result in crashes that would injure others.

Applying Seventh Circuit precedent, see *Ye* v. *Global-Tranz Enterprises, Inc.*, 74 F. 4th 453 (2023), the District Court held that the FAAAA expressly preempts Montgomery's negligent-hiring claim against C.H. Robinson and that the claim does not fall within the safety exception. No. 19–cv–1300, App. to Pet. for Cert. 11a–12a (SD Ill., Jan. 11, 2024). The Seventh Circuit affirmed. 124 F. 4th 1053, 1058 (2025).

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The Circuits are divided as to whether the FAAAA's safety exception permits negligent-hiring claims against brokers.[1] We granted certiorari. 606 U. S. 1066 (2025).

II

Montgomery argues that even if the FAAAA otherwise preempts his negligent-hiring claim against C.H. Robinson, the safety exception saves it. We agree.[2]

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[1] Compare *Ye* v. *Global-Tranz Enterprises, Inc.*, 74 F. 4th 453, 456 (CA7 2023), and *Aspen Am. Ins. Co.* v. *Landstar Ranger*, 65 F. 4th 1261, 1264 (CA11 2023), with *Cox* v. *Total Quality Logistics, Inc.*, 142 F. 4th 847, 853–858 (CA6 2025), and *Miller* v. *C.H. Robinson Worldwide, Inc.*, 976 F. 3d 1016, 1020 (CA9 2020).

[2] Because we hold that the safety exception applies, we assume without deciding that 49 U. S. C. § 14501(c)(1) would otherwise preempt Montgomery's negligent-hiring claim.

Recall the relevant text: The preemption provision "shall not restrict the safety regulatory authority of a State with respect to motor vehicles." § 14501(c)(2)(A). All agree that common-law duties and standards of care form part of a State's authority to regulate safety. Tr. of Oral Arg. 52, 61; Brief for United States as *Amicus Curiae* 20–22; see *Kurns* v. *Railroad Friction Products Corp.*, 565 U. S. 625, 637 (2012) (state common-law duties and standards of care are "designed to be . . . a potent method of governing conduct and controlling policy" (internal quotation marks omitted)). Negligent-hiring claims impose a duty of reasonable care in employing a contractor for work carrying a risk of physical harm. See Restatement (Second) of Torts § 411 (1964).

The preemption question thus boils down to whether negligent-hiring claims of the type Montgomery presses are claims "with respect to motor vehicles." § 14501(c)(2)(A). We conclude that they are. The FAAAA supplies no definition of "with respect to," so we give the phrase its ordinary meaning. Dictionaries define it as "referring to," "concerning," or "regarding." Oxford American Dictionary and Language Guide 853 (1999); Webster's New Universal Unabridged Dictionary 1640 (1996). Following those definitions, we have construed the same phrase in the FAAAA's preemption provision to mean "concern[s]." *Dan's City Used Cars, Inc.* v. *Pelkey*, 569 U. S. 251, 261 (2013) (interpreting "with respect to the transportation of property").[3] And the FAAAA defines "motor vehicle" as "a vehicle, machine, tractor, trailer, or semitrailer propelled or drawn by mechanical power and used on a highway in transportation." § 13102(16). Putting the pieces together, a claim is "with re-

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[3] In *Dan's City*, we explained that the phrase "transportation of property" "'massively limits the scope of preemption'" in the FAAAA. 569 U. S., at 261 (quoting *Columbus* v. *Ours Garage & Wrecker Service, Inc.*, 536 U. S. 424, 449 (2002) (Scalia, J., dissenting)). We did not hold or otherwise suggest that the words "with respect to" greatly limit the scope of preemption generally. Contra, Brief for Respondents 27.

spect to motor vehicles" if it "concerns" or "regards" the vehicles used in transportation.

Applying that interpretation here is straightforward. Montgomery alleges that C.H. Robinson failed to exercise reasonable care when it hired Caribe Transport, which had a subpar safety rating from federal regulators, to transport goods via truck. Based on that safety rating, Montgomery claims that C.H. Robinson knew (or should have known) that choosing Caribe Transport to move goods was reasonably likely to cause an accident. Requiring C.H. Robinson to exercise ordinary care in selecting a carrier therefore "concerns" motor vehicles—most obviously, the trucks that will transport the goods. So Montgomery's negligent-hiring claim falls within the FAAAA's safety exception, which saves it from preemption.

III

C.H. Robinson, joined in part by the United States, raises various counterarguments. None succeed.

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C.H. Robinson and the United States contend that construing the safety exception as Montgomery requests would swallow the FAAAA's express preemption provision whole. In other words, everything that Congress preempted would also qualify for the safety exception. Not so. Recall that the express preemption provision applies to laws and regulations "related to a price, route, or service of" motor carriers or brokers "with respect to the transportation of property." § 14501(c)(1). The safety exception saves only a subset of preempted claims: those involving regulations concerning motor vehicle safety. § 14501(c)(2)(A). One can imagine many state laws that are related to motor carrier prices, routes, and services—such as how much a carrier may charge or which highways it may traverse—that have no relationship to safety.

C.H. Robinson also argues that Montgomery's interpretation of the safety exception creates surplusage. In addition to preserving a State's regulatory authority with respect to

motor vehicles, the FAAAA also preserves state authority to impose route controls based on the size or weight of the vehicle or the hazardous nature of the cargo. *Ibid.* If Montgomery's interpretation were adopted, the argument goes, these carveouts would be redundant because they also speak to safety. But the surplusage exists whether the disputed phrase "with respect to motor vehicles" is defined narrowly or broadly, because any overlap comes from the reference to a State's regulatory authority over "safety." In any event, the provisions can be harmonized: A State's choice to impose route controls or weight limits may serve ends other than safety, such as guarding against highway wear and tear.

Finally, C.H. Robinson and the United States assert that interpreting the safety exception to cover brokers would create an anomaly with subsection (b) of the FAAAA. That section preempts state regulation of "intrastate" rates, routes, or services "of any freight forwarder or broker." § 14501(b)(1). Unlike subsection (c), subsection (b) does not contain a safety exception. Why, respondents ask, would Congress completely preempt state regulation of brokers for *intrastate* rates, routes, and services while only partially preempting state regulation of brokers for *interstate* rates, routes, and services?[4] To avoid this anomaly, they argue, we should interpret subsection (c)'s safety exception to exclude brokers. Then, States could not impose either interstate or intrastate safety regulations on them.

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We'll grant respondents this: It is not obvious why Congress included a safety exception in (c) but not in (b). But it would be even odder to say that the alleged tort—the negligent hiring of an unsafe motor carrier whose truck caused injury—is *not* an exercise of "the safety regulatory authority

[4] At oral argument, Montgomery's counsel was asked about the source of Congress's authority to enact subsection (b), given that it purports to preempt state regulation of purely intrastate activities. Tr. of Oral Arg. 34–35. Because subsection (b) is not before us, we do not address that issue.

of a State with respect to motor vehicles." § 14501(c)(2)(A). The text of subsection (c)(2)(A) controls. Better to live with the mystery than to rewrite the statute.

* * *

The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE KAVANAUGH, with whom JUSTICE ALITO joins, concurring.

I join the Court's opinion. I agree that the FAA Authorization Act of 1994 does not preempt state tort suits against brokers who negligently arrange truck transportation with an unsafe carrier.

In my view, this case is closer than the Court's opinion perhaps might suggest. The Seventh and Eleventh Circuits came out the other way, and in doing so, those courts raised a number of powerful points. See *Ye* v. *GlobalTranz Enterprises, Inc.*, 74 F. 4th 453 (CA7 2023); *Aspen Am. Ins. Co.* v. *Landstar Ranger*, 65 F. 4th 1261 (CA11 2023). In the end, however, I agree with this Court's decision and will briefly explain why.

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* * *

Brokers are intermediaries between shippers and trucking companies. Shippers contract with brokers, and brokers then select motor carriers (that is, trucking companies) to transport the shippers' goods. The trucking companies own or lease the trucks and hire the drivers.

When truck accidents occur, an injured party will sometimes bring a state tort suit against a trucking company that, for example, maintained an unsafe truck or hired or employed an at-fault driver. All parties here agree that those suits against trucking companies are not preempted and thus are permitted under the FAA Authorization Act. The ques-